

occasions, and that Defendant had an opportunity to view the dogs' behavior. (See, evidence cited in Plaintiff's response to Defendant's UMFs 13, 15, and 16.)

Yet Plaintiff's evidence does not establish a triable issue of material fact as to Defendant's actual knowledge of the dogs' dangerous propensities. Knowledge the dogs existed and the ability to view their behavior is not evidence Defendant knew the dogs were dangerous. Even knowledge that the dogs may have broken through a neighboring fence does not demonstrate actual knowledge the dogs had the propensity to be dangerous.

Without actual knowledge of the dogs' dangerous propensities, Defendant owed no duty to Plaintiff. As Defendant owed no duty to Plaintiff, he is entitled to judgment as a matter of law.

As the prevailing party, Defendant is ordered to submit a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, for this Court's signature.

22CV-01720

Alexis Figueroa vs Foster Poultry Farms, et al.

Motion to Bifurcate Trial

Defendant's motion to bifurcate the trial on issues of liability and damages is GRANTED.

Here, the issue of liability is much simpler than the issue of damages. The jury must first resolve the dispute about whether Defendant negligently operated his vehicle, thereby causing Plaintiff's injuries. Only upon making such a finding will the jury be faced with determining the amount of any damages. The witnesses for each of these phases of trial will be substantially different, and the liability phase is expected to require significantly fewer witnesses than the damages phase.

In contrast to the relatively simple issue of liability, it is anticipated that up to forty (40) witnesses may be called regarding Plaintiffs' injuries and damages. In light of the potential damages and extensive medical treatment, which Defendant will challenge, the damages phase will be lengthy due to the testimony of lay witnesses, many treating physicians, and opinions of dueling experts. Furthermore, due to the nature of this tragedy and extensive injuries suffered by Plaintiff, if the jury were to hear evidence of Plaintiffs' damages before deciding the issue of liability, it might allow its sympathy to influence its liability decision.

In sum, if Plaintiffs do not prevail on the issue of liability, court time will not be unnecessarily expended on damages. If Plaintiffs prevail, the second phase will be more straightforward, focusing exclusively on any dispute regarding the scope of injuries and damages. This will simplify the issues for the jury. Bifurcation will expedite the trial, avoid unnecessary costs and delays, and prevent undue prejudice to Defendant.

The Court will sign the order lodged on May 28, 2026.
